

CONTRACT TO PURCHASE REAL ESTATE #501 (Page 1 of 2)

(With Contingencies)

(Binding Contract. If Legal Advice Is Desired, Consult An Attorney.)



MASSACHUSETTS
ASSOCIATION OF REALTORS®

From: **BUYER(S):**

To: **OWNER OF RECORD ("SELLER"):**

Name(s): Mitch Sauerhoff and Ronna Sauerhoff

Name(s):

Address: W Hartford, CT

Address:

The agent Kenneth Perlow, Sagan Harborside SIR-TEAM Harborside is operating in this transaction as:

☒ Buyer's Agent ☐ Seller's Agent ☐ Facilitator ☐ Dual Agent

This provision does not eliminate the requirement to have a signed Mandatory Real Estate Licensee-Consumer Relationship. It acts to satisfy Standard of Practice 16-10 in the REALTOR® Code of Ethics.

The **BUYER** offers to purchase the real property described as 7 Ware Lane, Marblehead, MA 01945

together with all buildings and improvements thereon (the "Premises") to which I have been introduced by Kenneth Perlow, Sagan Harborside SIR-TEAM Harborside upon the following terms and conditions:

1. Purchase Price: The BUYER agrees to pay the sum of \$2,100,000.00 to the SELLER for the purchase of the Premises (the "Offer"), due as follows:

- i. \$1,000.00 as a deposit to bind this Offer
☒ and delivered herewith to the Seller or Seller's agent
☐ or to be delivered forthwith upon receipt of written acceptance

- ii. \$104,000.00* as an additional deposit upon executing the Purchase And Sale Agreement;
- iii. Balance by bank's, cashier's, treasurer's or certified check or wire transfer at time for closing.

2. Duration Of Offer. This Offer is valid until 5:00 ☐ a.m. / ☒ p.m. on 02/17/2023 by which time a copy of this Offer shall be signed by the SELLER, accepting this Offer and returned to the BUYER, otherwise this Offer shall be deemed rejected and the money tendered herewith shall be returned to the BUYER. Upon written notice to the BUYER or BUYER'S agent of the SELLER'S acceptance, the accepted Offer shall form a binding agreement. Time is of the essence as to each provision.

3. Purchase And Sale Agreement. The SELLER and the BUYER shall, on or before 5:00 ☐ a.m. / ☒ p.m. on 03/31/2023 execute the Standard Purchase and Sale Agreement of the MASSACHUSETTS ASSOCIATION OF REALTORS® or substantial equivalent which, when executed, shall become the entire agreement between the parties and this Offer shall have no further force and effect.

4. Closing. The SELLER agrees to deliver a good and sufficient deed conveying good and clear record and marketable title at 12:00 ☐ a.m. / ☒ p.m. on 04/01/2024 at the Essex South County Registry of Deeds or such other time or place as may be mutually agreed upon by the parties.

5. Escrow. The deposit shall be held by Seller's attorney, as escrow agent, subject to the terms hereof. Endorsement or negotiation of this deposit by the real estate broker shall not be deemed acceptance of the terms of the Offer. In the event of any disagreement between the parties concerning to whom escrowed funds should be paid, the escrow agent may retain said deposit pending written instructions mutually given by the BUYER and SELLER. The escrow agent shall abide by any Court decision concerning to whom the funds shall be paid and shall not be made a party to a pending lawsuit solely as a result of holding escrowed funds. Should the escrow agent be made a party in violation of this paragraph, the escrow agent shall be dismissed and the party asserting a claim against the escrow agent shall pay the agent's reasonable attorneys' fees and costs.

6. Contingencies. It is agreed that the BUYER'S obligations under this Offer and any Purchase and Sale Agreement signed pursuant to this Offer are expressly conditioned upon the following terms and conditions:

a. Mortgage (Delete If Waived) The BUYER'S obligation to purchase is conditioned upon obtaining a written commitment for financing in the amount of \$ at prevailing rates, terms and conditions by . The BUYER shall have an obligation to act reasonably diligently to satisfy any condition within the BUYER'S control. If, despite reasonable efforts, the BUYER has been unable to obtain such written commitment the BUYER may terminate this agreement by giving written notice that is received by 5:00 p.m. on the calendar day after the date set forth above. In the event that notice has not been received, this condition is deemed waived. In the event that due notice has been received, the obligations of the parties shall cease and this agreement shall be void; and all monies deposited by the BUYER shall be returned. In no event shall the BUYER be deemed to have used reasonable efforts to obtain financing unless the BUYER has submitted one application by and acted reasonably promptly in providing additional information requested by the mortgage lender.



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**MASSACHUSETTS**
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b. -Inspections. (Delete If Waived) The BUYER'S obligations under this agreement are subject to the right to obtain inspection(s) of the Premises or any aspect thereof, including, but not limited to, home, pest, radon, lead paint, energy usage/efficiency, septic/sewer, water quality, and water drainage by consultant(s) regularly in the business of conducting said inspections, of BUYER'S own choosing, and at BUYER'S sole cost by _____. If the results are not satisfactory to BUYER, in BUYER'S sole discretion, BUYER shall have the right to give written notice received by the SELLER or SELLER'S agent by 5:00 p.m. on the calendar day after the date set forth above, terminating this agreement. Upon receipt of such notice this agreement shall be void and all monies deposited by the BUYER shall be returned. Failure to provide timely notice of termination shall constitute a waiver. In the event that the BUYER does not exercise the right to have such inspection(s) or to so terminate, the SELLER and the listing broker are each released from claims relating to the condition of the Premises that the BUYER or the BUYER'S consultants could reasonably have discovered.

7. Representations/Acknowledgments. The BUYER acknowledges receipt of an agency disclosure, lead paint disclosure (for residences built before 1978), and Home Inspectors Facts For Consumers brochure (prepared by the Office of Consumer Affairs). The BUYER is not relying upon any representation, verbal or written, from any real estate broker or licensee concerning legal use. Any reference to the category (single family, multi-family, residential, commercial) or the use of this property in any advertisement or listing sheet, including the number of units, number of rooms or other classification is not a representation concerning legal use or compliance with zoning by-laws, building code, sanitary code or other public or private restrictions by the broker. The BUYER understands that if this information is important to BUYER, it is the duty of the BUYER to seek advice from an attorney or written confirmation from the municipality. In addition, the BUYER acknowledges that there are no warranties or representations made by the SELLER or any broker on which BUYER relies in making this Offer, except those previously made in writing and the following: (if none, write "NONE"):

NONE except this agreement is contingent upon Buyer and Seller executing a mutually agreeable purchase and sale agreement.

8. Buyer's Default. If the BUYER defaults in BUYER'S obligations, all monies tendered as a deposit shall be paid to the SELLER as liquidated damages and this shall be SELLER'S sole remedy.

9. Additional Terms.

* or other payment schedule as agreed upon. Offer price reflects purchase price for home as currently spec'd. As discussed, Buyer intends to custom design home with final specs to be determined and spelled out in P&S Agreement. Additional payment of \$8,000 is non refundable towards design services, also included herewith.

Mitch Sauerhoff

dotloop verified
02/16/23 1:51 PM EST
WFO1-IGS-1040-93N

Rocco Sauerhoff

dotloop verified
02/16/23 1:51 PM EST
WFO1-IGS-1040-93N

BUYER

BUYER

SELLER'S REPLY

SELLER(S): (check one and sign below)

☐ (a) ACCEPT(S) the Offer as set forth above at _____ ☐ a.m. / ☐ p.m. on this _____ day of _____.

☐ (b) REJECT(S) the Offer.

☒ (c) Reject(s) the Offer and MAKE(S) A COUNTEROFFER on the following terms:

Please see attached Addendum to Offer dated Feb. 17, 2023.

This Counteroffer shall expire at 5:00 ☐ a.m. / ☒ p.m. on Feb. 21, 2023 if not withdrawn earlier.

[Signature], CEO, LLC 2/17/23

SELLER or spouse

SELLER

(IF COUNTEROFFER FROM SELLER) BUYER'S REPLY

The BUYER: (check one and sign below)

☐ (a) ACCEPT(S) the Counteroffer as set forth above at _____ ☐ a.m. / ☐ p.m. on _____ day of _____.

☐ (b) REJECT(S) the Counteroffer.

BUYER

BUYER

RECEIPT FOR DEPOSIT

I hereby acknowledge receipt of a deposit in the amount of \$ _____ from the BUYER this _____ day of _____.

Escrow Agent or Authorized Representative



ADDENDUM TO OFFER

7 Ware Lane, Marblehead, Massachusetts
Buyer: Mitch Sauerhoff and Ronna Sauerhoff
Seller: Clifton Avenue Development LLC

Property: The land at 7 Ware Lane, Marblehead, Massachusetts and a new dwelling to be constructed thereon pursuant to Finish Specifications agreed upon by the Parties prior to signing a Purchase and Sale Agreement.

Purchase Price: It is agreed that the stated purchase price of \$2,100,000.00 is for construction of a dwelling as currently specified by Seller, and that both the purchase price and payment schedule are subject to change based on changes to the Finish Specifications and/or Floor Plans.

Closing Date: October 1, 2024 at 10:00 A.M. at Essex South Registry of Deeds or such other time and place as may be mutually agreed upon by the Parties.

Purchase and Sale: Executed Purchase & Sale Agreement by March 31, 2023.

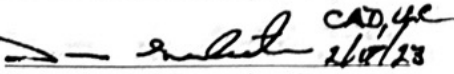
Finish Specifications and Floor Plans approved by March 31, 2023.

When executed, the Purchase & Sale Agreement shall become the entire agreement between the Parties and the Offer shall have no further force and effect.

Design Services: Upon execution of this Offer, Buyer will make a nonrefundable payment of \$8,000.00 for design services for changes, redesign, and customization of Finish Specifications and Floor Plans. Buyer agrees that Seller will charge Buyer for design services at the following hourly rates: \$150 per hour for Clifton Avenue Development and \$300 per hour for architectural services. Total charge for design services will not exceed \$16,000.00 unless agreed upon by parties in writing.

SELLER:

Clifton Avenue Development, LLC,

By:  ^{CAO, LLC}
Douglas Schluter, its Manager

BUYER:

Mitch Sauerhoff

Ronna Sauerhoff